

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
TERRY DUPREE,

Plaintiff,

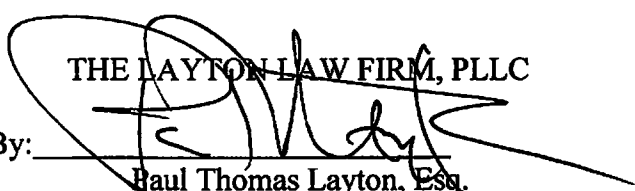
-against-

Index No.:

Date Filed:

Plaintiff designates KINGS
County as the place of trial
The basis of venue is
Place of Occurrence**S U M M O N S**THE CITY OF NEW YORK; and, ALEX ALVEREZ,
NYPD Police Officer, Individually and in his Official
Capacity; and, NYPD Police Officer(s) John Doe 1-4,
Individually and in their Official Capacities; and, NYPD
Sergeant(s) John Doe 1-4, Individually and in their Official
Capacities, and, Commanding Officer of 077th Precinct
Individually and in his/her Official Capacity; and, NYPD
Deputy Inspector John Buttacavoli, Tax ID #918799,
Individually and in his Official Capacity,
Defendants.-----X
To the above-named Defendant (s) :

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff TERRY DUPREE's attorney THE LAYTON LAW FIRM, PLLC within twenty (20) days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) ; and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 8, 2019By: 

THE LAYTON LAW FIRM, PLLC

Paul Thomas Layton, Esq.

Attorney for Plaintiff

TERRY DUPREE

30 Vesey Street, Suite 1801

New York, New York 10007

RIDER

Defendants' address:

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

ALEX ALVEREZ, NYPD Police Officer,

John Doe 1-4,

NYPD Sergeant(s) John Doe 1-4,

Commanding Officer of 077th Precinct

NYPD Deputy Inspector John Buttacavoli, Tax ID #918799,
One Police Plaza
New York, New York 1000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TERRY DUPREE,

Plaintiff,

Index:

Date Filed:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK; and, ALEX ALVEREZ,
NYPD Police Officer, Individually and in his Official
Capacity; and, NYPD Police Officer(s) John Doe 1-4,
Individually and in their Official Capacities; and, NYPD
Sergeant(s) John Doe 1-4, Individually and in their Official
Capacities, and, Commanding Officer of 077th Precinct
Individually and in his/her Official Capacity; and, NYPD
Deputy Inspector John Buttacavoli, Tax ID #918799,
Individually and in his Official Capacity,

Defendants.

-----X
The Plaintiff, TERRY DUPREE, by his attorneys, THE LAYTON LAW FIRM, PLLC,
complaining of the defendants, THE CITY OF NEW YORK; ALEX ALVEREZ, NYPD Police
Office, Individually and in his Official Capacity; NYPD Police Officer(s) John Doe 1-4,
Individually and in their Official Capacities; NYPD Sergeant(s) John Doe 1-4, Individually and in
their Official Capacities; Commanding Officer of 077th Precinct, Individually and in his/her
Official Capacity; and, NYPD Deputy Inspector John Buttacavoli, Tax ID #918799, Individually
and in his official capacity, upon information and belief, and at all times hereinafter mentioned,
alleges:

PRELIMINARY STATEMENT

1. This is a civil action against the defendants based on, and arising out of, the
wrongful acts and omissions of the CITY OF NEW YORK, and certain employees and agents of

the CITY OF NEW YORK, named herein, in which Plaintiff TERRY DUPREE (hereinafter "Plaintiff") seeks relief for the violation of his rights secured under the common law of the State of New York and under 42 U.S.C. Sections 1983 and 1985.

VENUE

2. Venue is proper pursuant to New York State Civil Procedure Laws and Regulations Section 504(3) as Plaintiff is a resident of the State of New York, County of Kings; and, the acts complained of, occurred within the County of Kings in the City and State of New York.

JURY TRIAL DEMANDED

3. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

PARTIES

4. The plaintiff, TERRY DUPREE, is a citizen and resident of the United States and at all relevant times herein was a resident of Kings County in the City and State of New York.

5. Defendant CITY OF NEW YORK is and was at all relevant times herein, a municipal entity created and authorized under the laws of the State of New York.

6. Defendant CITY OF NEW YORK is authorized by law to maintain a police department, which acts as its agents in the area of law enforcement to members of the public and for which it is directly responsible.

7. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to public consumers of the services provided by the New York Police Department ("NYPD").

8. Defendants ALEX ALVEREZ, NYPD Police Officer; Commanding Officer of the 077th Precinct; Deputy Inspector JOHN BUTTACAVOLI; and the defendants whose names and

Shield numbers are currently unknown (identified herein as “JOHN DOE” Police Officers and Sergeants) are and were at all relevant times herein, duly appointed and acting officers, servants, employees and agents of The New York City Police Department, a municipal agency of defendant CITY OF NEW YORK.

9. The Individually named defendants are and were, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by CITY OF NEW YORK, and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

10. Defendants ALEX ALVEREZ, NYPD Police Officer; NYPD Police Officer(s) John Doe(s) 1-4 and NYPD Sergeant(s) 1-4; Commanding Officer of 077 Precinct; and, Deputy Inspector JOHN BUTTACAVOLI, are sued Individually, as well as, in their Official Capacities.

NOTICE OF CLAIM

11. On August 14, 2019 within ninety days after the claim arose, Plaintiff filed a Notice of Claim upon defendant CITY OF NEW YORK by delivering a Notice of Claim to the persons designated by law as a person to whom such claims may be served.

12. The Notice of Claim was in writing, sworn to and contained the name and address of Plaintiff.

13. The Notice of Claim set out the nature of the claim, the time when the claim and the place where and manner which the claim arose, and the damages and injuries claimed to have been sustained by Plaintiff.

14. On February 11, 2019, Plaintiff attended a hearing conducted by the City of New York pursuant to GML Section 50h.

15. Defendant CITY OF NEW YORK has neglected and failed to adjust the claims with the statutory time period.

16. Less than one year has passed since the Plaintiff's causes of action accrued.

STATEMENT OF FACTS

17. On May 18, 2018 at approximately between 5:00 p.m. and 7:00 p.m. the TERRY DUPREE, the Plaintiff, was inside a store located at 1295 Pacific Street, Brooklyn, New York.

18. While inside of the store, TERRY DUPREE, the Plaintiff talked with the store manager.

19. The store manager asked TERRY DUPREE, the Plaintiff to change a hundred-dollar bill for a customer, and the Plaintiff did so.

20. After TERRY DUPREE, the Plaintiff, gave the customer change, Police Officers including defendant ALEX ALVAREZ entered the store and forcefully stopped the Plaintiff.

21. Defendant ALVEREZ immediately tightly handcuffed TERRY DUPREE, the Plaintiff and then placed one of his ungloved hands into Plaintiff's pants and swiped his finger(s) about his rectum.

22. Defendant ALVAREZ conducted an invasive body cavity search of Plaintiff inside of the store located at 1295 Pacific Street.

23. TERRY DUPREE, the Plaintiff was asked, by defendant ALVAREZ, "Where is the stuff?" and then defendant ALVEREZ placed his ungloved hand and fingers into Plaintiff's pants and "swiped it" between his buttocks for a *second* time.

24. Defendant ALVAREZ conducted a second invasive body cavity search of TERRY DUPREE, the Plaintiff, inside of the store located at 1295 Pacific Street.

25. The unlawful, illegal, and humiliating searches were conducted in public view.
26. Defendant NYPD SERGEANT JOHN DOE entered the store and defendant ALVEREZ again placed his ungloved hand and finger(s) into TERRY DUPREE, the Plaintiff's pants and swiped about his rectum for a *third* time.
27. Defendant ALVAREZ conducted the third unlawful, illegal, and humiliating body cavity search of TERRY DUPREE, the Plaintiff inside of the store located at 1295 Pacific Street in public view.
28. Defendant SERGEANT JOHN DOE failed to intervene to protect TERRY DUPREE, the Plaintiff from the illegal and humiliating body cavity search inside of the store located at 1295 Pacific Street.
29. No contraband was found on TERRY DUPREE, the Plaintiff.
30. TERRY DUPREE, the Plaintiff, was put inside a police vehicle and taken to the 077 Precinct.
31. During his transport from the store to the 077th Precinct TERRY DUPREE, the Plaintiff, repeatedly complained about the handcuffs being too tight and causing him pain.
32. Plaintiff's repeated complaints about the excessively tight handcuffs were ignored.
33. Plaintiff's repeated complaints to defendant ALVEREZ and defendant JOHN DOE(S) OFFICER(S) that his handcuffs were extremely tight were ignored.
34. The defendant NYPD Police Officers and Sergeant failed to intervene to protect TERRY DUPREE, the Plaintiff, from the invasive body cavity search and the excessive force of the very tightly applied handcuffs.
35. At the 077th Precinct, TERRY DUPREE, the Plaintiff, was subjected to a *fourth* body cavity search inside of the 077th Precinct.

36. No contraband was recovered from the Plaintiff.
37. No NYPD Police Officers, Sergeants, Captains nor Commanding Officers intervened to protect TERRY DUPREE, the Plaintiff at the 077th Precinct.
38. Plaintiff's handcuffs remained on him at the 077th Precinct.
39. Plaintiff continued to suffer pain from the excessively tight handcuffs and requested medical attention.
40. Plaintiff's request for medical attention was denied.
41. Plaintiff was placed into a cell at the 077th Precinct in handcuffs.
42. Plaintiff was transferred to Central Booking in handcuffs.
43. Plaintiff was arraigned and prosecuted on false criminal charges, which required his presence at repeated court appearances to defend against them.

FIRST CAUSE OF ACTION

*False Arrest and False Imprisonment Against The City of New York
(New York State law)*

44. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "43" of this Verified Complaint as though fully set forth herein.
45. On May 18, 2018 the Plaintiff was arrested without a warrant.
46. On the aforesaid date and place, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined the plaintiff TERRY DUPREE and/or restricted TERRY DUPREE's freedom of movement.
47. Plaintiff TERRY DUPREE was conscious of said confinement and/or restriction.
48. Plaintiff TERRY DUPREE did not consent to said confinement and/or restriction.
49. The confinement was not otherwise privileged.
50. By the actions described above, the defendant THE CITY OF NEW YORK caused

TERRY DUPREE to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.

51. The individuals conduct alleged herein occurred while they were on duty, and in uniform, and/or in and during the course and scope of their duties and functions as NYPD police officers, and/or while they were acting as the CITY's agents and employees, clothes with and/or invoking state power and/or authority, and, as a result, the CITY is liable for the plaintiff's false imprisonment.

52. As a result of the foregoing, TERRY DUPREE was deprived of his liberty, suffered bodily injury, pain and suffering and emotional injury, costs and expenses, and was otherwise damaged and injured and is entitled to damages exceeding the jurisdiction of all lower courts.

SECOND CAUSE OF ACTION

*Assault and Battery
(New York State law)*

53. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "52" of this Verified Complaint as though fully set forth herein.

54. On the aforesaid date and place, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally caused Plaintiff to fear and/or apprehend an imminent harmful and offensive contact.

55. Plaintiff did not consent to physical contact with the defendant THE CITY OF NEW YORK, its agents, servants and/or employees.

56. On the aforesaid date and place, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally made physical contact with the plaintiff TERRY DUPREE.

57. On the aforesaid date and place, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees forced plaintiff TERRY DUPREE into handcuffs, tightened the handcuffs

excessively, kept handcuffs on the plaintiff for an excessive period of time, went into the pants of the Plaintiff and touched and “swiped” a hand and fingers about plaintiff’s genitals and rectal area.

58. As a result of the foregoing, TERRY DUPREE suffered bodily injury, pain and suffering and emotional injury and is entitled to damages exceeding the jurisdiction of all lower courts.

THIRD CAUSE OF ACTION
UNDER 42 U.S.C. SECTION 1983

*False Arrest, Malicious Prosecution, Excessive Use of Force,
Failure to Intervene, Fabrication of Evidence and Due Process Violations
(Individually named Defendants)*

59. Plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “58” of this Verified Complaint as though fully set forth herein.

60. The conduct of the individually named defendant officers as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.

61. Such conduct violated Plaintiff’s rights under 42 U.S.C. Section 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

62. Consequently, Plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally in an amount greater than the jurisdiction of all lower courts.

FOURTH CAUSE OF ACTION
UNDER 42 U.S.C. SECTION 1983

Failure to Train/Supervise/Discipline and Municipal Policy

63. Plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “62” of this Verified Complaint as though fully set forth herein.

64. Defendant CITY OF NEW YORK, acting through the New York City Police Department, had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly

train, supervise or discipline its police officers concerning correct practices in stop and frisks, conducting investigations, searches, including pat downs, strip searches, body cavity searches, the use of force, handcuffing, police officers promoting or condoning of the making of false statements and/or perjury, the blue wall of silence, and arrests made without probable cause and how to falsify the existence of reasonable suspicion and probable cause.

65. Defendant THE CITY OF NEW YORK, acting through the NEW YORK CITY POLICE DEPARTMENT, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as Plaintiff, who is African American, on the pretext that they were involved in some crime or offense.

66. The existence of the unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the CITY OF NEW YORK in the State and Federal courts including *Floyd v. City of New York*, 813 F. Supp. 2d 417 (S.D.N.Y. 2011), 959 F. Supp. 2d 540; *Daniels v. City of New York*, 99 Civ 1698 (SAS); *Ligon v. City of New York*, 12 CIV 2274 (SAS); and *Davis v. City of New York*, 10 CIV 0699 (SAS).

67. Defendant CITY OF NEW YORK maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant CITY OF NEW YORK acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff's injuries as described herein.

68. By these actions, defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C.

Section 1983, which was the proximate cause and a substantial factor of plaintiff's injuries; the Plaintiff is entitled to damages in an amount exceeding the jurisdiction of all lower courts.

FIFTH CAUSE OF ACTION

Conspiracy

42 U.S.C. SECTION 1985 and 1986

Police Officer Alex Alvarez Shield # not currently known and NYPD Officers John Doe(s) 1-4; NYPD Sergeants John Doe(s) 1-4; and Commanding Officer John Buttacavoli, Tax ID #918799

69. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "68" of this Verified Complaint as though fully set forth herein.

70. In an effort to find fault to use against Plaintiff, defendant officers conspired among themselves and conspired with other individuals to deprive Plaintiff of his constitutional rights secured by U.S.C. Section 1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

71. Moreover, defendant officers engaged in a conspiracy designed to deprive Plaintiff of his constitutional and federal rights in violation of 42 U.S.C. Section 1985 and 1986

72. As a direct and proximate result, the Plaintiff is entitled to damages in an amount exceeding the jurisdiction of all lower courts.

WHEREFORE, Plaintiff demands the following relief:

- a. Compensatory damages;
- b. Punitive damages against the individually named defendants under the THIRD, FOURTH AND FIFTH causes of actions;
- c. Costs, interest and attorneys' fees;

Dated: New York, New York
March 18, 2019



THE LAYTON LAW FIRM, PLLC
By: Paul Thomas Layton, Esq.

Attorneys for Plaintiff(s)
Office & PO Address
30 Vesey Street, Suite 1801
New York, New York 10007
(917) 923-4287
laytonlaw10007@gmail.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
TERRY DUPREE,

Plaintiff,

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Date Filed:

- against -

THE CITY OF NEW YORK; and, ALEX ALVEREZ,
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Individually and in their Official Capacities; and, NYPD
Sergeant(s) John Doe 1-4, Individually and in their Official
Capacities, and, Commanding Officer of 077th Precinct
Individually and in his/her Official Capacity; and, NYPD
Deputy Inspector John Buttacavoli, Tax ID #918799,
Individually and in his Official Capacity,

Defendants.
-----X**ATTORNEY VERIFICATION**

Paul Thomas Layton, an attorney at law, duly admitted to practice in the Courts of this
State, affirms under the penalties of perjury and pursuant to CPLR 2106 that:

I am the owner of The Layton Law Firm, PLLC the attorneys for the Plaintiff in the
within matter.

I have read the foregoing Verified Complaint and know the contents thereof, and
upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the plaintiff is that the
plaintiff herein is not currently in the County in which plaintiff's attorney maintains his
offices.

Dated: New York, New York
May 8, 2019



The Layton Law Firm, PLLC
By: PAUL THOMAS LAYTON, ESQ.

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

Index#:

TERRY DUPREE,

Plaintiff

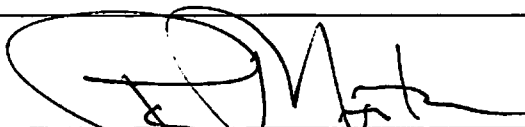
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Deputy Inspector John Buttacavoli, Tax ID #918799,
Individually and in his Official Capacity

Defendants

SUMMONS and VERIFIED COMPLAINT

Dated: New York, New York
May 8, 2019



Signature (Rule 130-1.1-a)

THE LAYTON LAW FIRM, PLLC

PAUL THOMAS LAYTON, ESQ.

Attorney for Plaintiff(s)

Office and Post Office Address, Telephone

30 Vesey Street (Suite 1801)

NEW YORK, NY 10007

917-923-4287

To:

Service of a copy of the within is
hereby admitted.

Dated:.....20.....

.....

PLEASE TAKE NOTICE:
NOTICE OF ENTRY

That the within is a true copy of an Order duly entered in the office of the clerk of the within named court
on